

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
FAMILY DIVISION

IN RE: THE MARRIAGE OF

SARAH HANSON,
Petitioner,

Case No.: 24-DR-1150

and

Division: D

CHRISTOPHER HANSON,
Respondent,

HUSBAND/RESPONDENT'S VERIFIED MOTION TO
DISQUALIFY JUDGE AYERS

The Respondent, CHRISTOPHER HANSON files this Motion to disqualify Judge Ayers and in support thereof, states:

1. This Motion is made pursuant to Florida Statute § 38.10 and Florida Rule of Judicial Administration 2.330, which allow for the disqualification of a judge where there is a well-founded fear that the judge cannot act impartially or where there is evidence of bias.
2. "Litigants are entitled to have their disputes resolved by impartial judges. Canon 3 and rule 2.160 emphasize the essential importance of assuring that presiding judges are free from bias and prejudice." "Berry v. Berry 765 So.2d 855 (Fla. 5th DCA).
3. Florida Statute §38.10 provides that disqualification of the trial Judge is appropriate if there are facts that demonstrate bias against a certain party.
4. Rule of Judicial Procedure 2.330 provides for a party to seek disqualification of the trial Judge if he does not believe he can get a fair process.
5. Under the present facts, there is a long history of Judge Ayers' actions that demonstrate a pattern of unwarranted favor and concern for the attorneys in this matter (on both sides), and bias specifically against Husband with some extreme lack of concern for his due process rights in this matter.

6. Husband quite reasonably concluded that he is not able to get a fair process in front of Judge Ayers based on a long pattern of putting attorney interests in convenience and cooperation amongst one another including when it involves inappropriate behavior above the interests in Justice for the litigants, specifically Husband in this case.

7. Husband was represented by 2 separate reputable law firms in Harris Hunt and Derr (HHD, with Katherine Scott and Gracie Samarkos as the attorneys) and Cortes Hodz (Ms. Hodz) in relation to a simple discovery issue. (Docket #22, 72).

8. Husband's objective for the litigation – obtaining some financial discovery – never changed from the first contact with his first attorney through to the time of filing this Motion. The facts never changed, and no one has referenced a relevant change in the law.

9. While all attorneys initially believed that the discovery issue was a relatively straightforward one which should not be difficult to accomplish, their attitudes toward the case changed entirely after speaking with Wife's counsel, Mr. Davis.

10. Husband has significant concerns over the manner in which Judge Ayers has focused on protecting the lawyers from any consequences or embarrassment for their behavior over the litigants' right to due process in inexplicably rushing Ms. Hodz's withdrawal process with no justification nor findings of fact. (Docket #72, 87, 90, 91, 92, 97, 98, 101, 105, 109, 110).

11. Ms. Hodz withdrew without any notice, refused to answer any questions from Husband/her client, and rushed the hearing on her motion to withdraw over Husband's/her client's objection, and Judge Ayers did nothing to support Husband's right to due process nor comment on Ms. Hodz's failures to comply with ethical requirements. (Docket #72, 97, 98, 109, and 110)

12. It's necessary to also review circumstances with Mr. Davis's conduct in order to understand the full extent of the bias Judge Ayers has shown in favor of the attorneys, and against Husband in this case. Mr. Davis has engaged in a pattern of at least 15 separate actions that have

delayed discovery and now enforcement of a Court order from 10-28-24 although it is not an exhaustive list:

- A. The Parties' stipulated to exchange some discovery no later than June 28, 2024, yet Mr. Davis did nothing to comply with the stipulation he reached for nearly 4 months. (Docket #97, p. 11-18)
- B. Mr. Davis objected to the subpoena to Chase Bank on June 13, 2024, and refused to negotiate down to 3 years of records, what Husband was already in the process of producing for her for ALL financial accounts, while personally doing the leg work.
- C. Mr. Davis made delayed setting the hearing on the discovery issues. In early August, Husband's attorney (at the time) received an automatic email response from Mr. Davis advising that he had filed a notice of unavailability and that he would be out of the office for 2 weeks. Mr. Davis did not file a notice unavailability with the Court. Drafting the subpoenas to the financial institutions referenced in Wife's disclosure to date.
- D. Husband's attorney was able to secure a September date, but delays in Mr. Davis responding on availability pushed the hearing into October.
- E. On October 2nd, 2024, Mr. Davis filed an amended petition for dissolution of marriage in which Mrs. Hanson suddenly sought primary custody. Husband is aware of nothing approaching a good faith reason for that unexpected change after several years of agreement that any divorce must result in 50/50 custody period. The kids are thriving in every way possible. Husband has asked Mr. Davis on multiple occasions about any concerns with the kids, and Wife has provided no answers. Based upon the timing of the change and subsequent communication with Mr. Davis, it seems the strategy for the change in position was and remains to obtain leverage on this discovery issue. (Docket #97, p. 12-14).

- F. The Ascensus records highlight how Mr. Davis used a strategic trickle of documents to delay enforcement of the Court's October 28, 2024 Order compelling disclosure within 10 days. In the initial attempt at Mandatory Disclosure on October 25, 2024, Wife provided limited documents, including Ascensus account records from from April 1, 2024 forward. The account was unknown to Husband until her initial disclosure back in April. Generally, the various account documents provided on October 25, 2024 go back to early 2023 with this glaring exception in the Ascensus records. 3 days after the hearing, Mr. Davis produces records from Ascensus going back to October of 2023, but disclosures are required back to April of 2023. That left a very relevant period of discovery still lacking, especially given that the account was unknown to husband, and Wife's attorney had just successfully delayed the hearing all the way until October of 2024.
- G. While Mr. Davis recently made a third attempt at compliance with Mandatory disclosures, now nearly seven months after the stipulated due date, the Certificate of Compliance still, on its face, fails to comply with Rule FFLRP 12.285(j).
- H. Mr. Davis was notified of the deficiency through the motion for contempt and enforcement although he has done nothing to even attempt to comply with the Rule (Docket #84).
- I. Wife and her counsel caused significant delays in moving the case forward due to the games Mr. Davis played in attending a phone conference with Husband's second attorney, Ms. Hodz.
- J. Mr. Davis's actions demonstrate an intent to delay a conference with Ms. Hodz, Husband's second attorney, to further delay these discovery issues. The law offices scheduled a conference between Ms. Hodz and Mr. Davis for mid October sometime. Just before the call was scheduled to take place, Mr. Davis cancelled the call and

refused to reschedule it until Ms. Hodz could file her notice of appearance. Mr. Davis should have to answer for what changed between setting the first call when there was no notice of appearance, and then suddenly cancelling it and refusing to reschedule until there is one. And Ms. Hodz apparently didn't work the case at all during this time, and absent some good faith reason for withdrawal beyond it's a frustrating a case, she had an obligation to see the work through to the end.

K. One issue that comes up in a *res ipsa loquitor* manner is the same exact reaction and change in case outlook after my representatives had their respective conferences with Mr. Davis. As far as Husband knows, Mr. Davis only spoke to each of his attorneys once. Husband recalls vividly, a sudden and dramatic change in their attitudes toward the case after each call that occurred months apart. I've received no explanation for the change, but one is warranted if Ms. Hodz is to effectively withdraw without notice putting Husband in this difficult position. Ms Hodz advised Husband in the call immediately after her conference with Mr. Davis that she would have to withdraw if I did not cooperate with what they were asking while they continued to ignore the discovery concerns. Husband has serious concerns about spending time and money on a third attorney in case that counsel also runs in fear over some unknown aspect of a conference with Mr. Davis.

L. The Motion to appoint a guardian ad litem is certainly the new low point in this matter. The children have been thriving under difficult circumstances. There is no evidence anywhere that they are doing any less than fantastic. Mrs. Hanson nor Mr. Davis have responded regarding any concerns with their living situation with me nor their general well being. This is another litigation tactic that I can only pray can be avoided. Husband requests the Court do any investigation into the children's well being in the least invasive and attention demanding manner. Focusing their attention away from

school, gymnastics, dance, reading, coloring, and bike riding to focus it on this awful conflict Mr. Davis and Wife are prolonging is simply cruel.

M. The Motion to compel a psychological evaluation is more lawfare directed at Husband in a desperate attempt to avoid critical discovery. Husband has made Mr. Davis and Mrs. Hanson well aware of the impact the delays and obstruction are causing. Yet they insist on putting the family through more of it, and Judge Ayers continues to shield Wife from discovery obligations and her attorney from scrutiny on his behavior.

13. Mr. Davis has failed to dispute or even address any of these allegations raised by Husband (despite numerous opportunities) leaving the Court with this undisputed factual history demonstrating how a member of the Florida bar is treating an unrepresented litigant in a discovery matter, yet she refers to the attorney as a “Teddy Bear” during a hearing on Husband’s due process rights. (Docket #109, p. 17, L11-16).

14. These facts demonstrate bias against Husband including specifically in relation to his constitutional right to due process. Such extreme conduct as moving the hearing up to allow for only one day notice, ignoring Husband’s inability to be there, and ripping away his counsel without notice nearly 4 weeks before the date the Court initially chose for the hearing. (See Docket #72, 97, 109).

15. All of the delay tactics specifically relate to the one issue that brought the parties to Court so long ago: Husband’s discovery into Wife’s finances based upon her lack of any financial disclosures and denying any significant assets (less than \$20,000) around the time of entering the Post Marital Agreement (PMA). (Docket #22, 91 and 97).

16. At two separate hearings, Husband’s core arguments on Ms. Hodz withdrawal all stem from Mr. Davis’s discovery violations, unresasonable behavior, and something that is happening during conferences with Husband’s representatives. (Docket #90, 109)

17. When Husband began talking about the long list of ethical concerns in Mr. Davis's behavior at the December 19, 2024 hearing, Judge Ayers interjected before Husband could even explain the initial 4 month delay Wife caused, which in context with all of the other delay and conceal tactics, was quite clearly intentional. Docket #90, p. 13, L8-21)

P. 13, Line 8 :MR. HANSON: Two. That's why I've been trying to rush this through, Your Honor. It's killing me to watch what it's doing to them. It's the only reason I'm so flustered is it's affecting my health and affecting my children. I don't understand all of the delay tactics. I don't know if Your Honor is aware of the fact that Mr. Davis stipulated to have the mandatory disclosures completed by June 28th. He didn't make any effort --

THE COURT: Mr. Hanson, we're not going backwards. You've expressed your complete frustration that this case is not going in the direction. I'm going to make sure it does. I've already told you that. (Docket #90, p. 13, L8-21)

18. Judge Ayers comment that, "we're not going "backwards" is confusing in that Wife and Mr. Davis have still not complied with mandatory disclosures to be produced per stipulation by June 28, 2024..... (Docket #90 p. 13, L8-21)

19. It's important to note that Mr. Davis was noticed for the January 9, 2025 hearing with no talk of any excusal of his attendance until an email he sent on January 8, 2025 after 5pm. (Docket #110, p. 16-20).

20. Mr. Davis attended the first hearing on this same topic with his client on a single day's notice, at a hearing set for December 13, 2024, a Friday at 4:30 in the afternoon.

21. Obviously, Mr. Davis was aware that his conduct is much more at the center of Husband's due process concerns and he's simply hiding from scrutiny.

22. By January 9, 2025, it was even more obvious that Mr. Davis's conduct was central to Husband's arguments on Ms. Hodz withdrawal.

23. Mr. Davis sent an email inquiring as to whether he needed to attend the hearing at 5:51pm on January 8, 2025 advising that he and his client were able to attend but did not plan on attending unless the Judge wanted them to attend. (Email chain attached as Exhibit A

24. Husband immediately responded explaining that it was critical that Mr. Davis attend the event as his conduct was critical to the case.

25. Mr. Davis, despite not having court approval, having attended a hearing on the same issue previously, being noticed for the hearing, and Husband's insistence that he attend to discuss his conduct central to the issues, Mr. Davis simply did not appear for the event.

26. Mr. Davis should not have the authority to simply decide what hearings he wants to attend vs. not attend irrespective of the opposing party's position and whether his conduct is the core of all the due process concerns. It seems he has precisely that authority in front of Judge Ayers.

27. Husband has requested an explanation from Mr. Davis about his failure to attend the hearing without approval, but has not received any logical or coherent explanation. (Email with Mr. Davis seeking explanation for his failure to attend the hearing without being excused, Attached as Exhibit B, p. 21-34).

28. The Court never responded to an inquiry on whether Mr. Davis was excused from the hearing despite receiving Husband's objections.

29. This was the only hearing Mr. Davis did not want to attend this far in the case, obviously, because the filings for this hearing most directly address Mr. Davis's reprehensible conduct.

30. The Court continues to let Mr. Davis hide from any sort of consequences for or even review any of his conduct despite an unrepresented litigant bringing to the Court's attention these serious allegations.

31. Judge Ayers ignored all of those facts despite no other factual explanation for Ms. Hodz's decision to withdrawal and incredibly offered her own general thoughts on Mr. Davis being the opposite of the facts laid out before the Court, even referring to Mr. Davis as a "Teddy Bear." (Please see transcripts (Docket #109, p. 16, L11-16).

32. Husband is of the firm belief that based on the facts and law herein, disqualification of Judge Ayers is necessary for any hope of allowing Husband to receive due process in these proceedings.

33. The following instances, which collectively show a pattern of behavior that undermines the impartial administration of justice in this case, demonstrate Judge Ayers' bias and prejudice against Husband:

- A. By considering Mr. Davis's post-10-28-24 hearing Memo which was submitted late, without explanation, after he had already been 4 months late on a stipulated date for producing mandatory disclosures and obstructed all Husband's discovery, the one issue requiring Court intervention.
- B. Moving the hearing the Court scheduled on Ms. Hodz motion for withdrawal for 1-6-25 up to 12-13-24, over Husband's objections, when there were no ethical, safety, or honesty concerns.
- C. Proceeding with scheduling the 12-13-24 hearing on 1 day's notice despite Husband being unavailable to attend in support of his objection.
- D. Proceeding with the 12-13-24 hearing despite Husband making serious objections and concerns on the record relating to due process and attorney conduct. Husband was

forced to stay up all night drafting an objection and filing the supporting documentation.

- E. Failing to address Husband's concerns about Mr. Davis's inappropriate conduct despite that being the core of Husband's argument on withdrawal.
- F. Despite Husband waiving any attorney/client privilege in order to allow for an unrestricted inquiry into the basis for withdrawing, Judge Ayers failed to make any sort of factual findings regarding the grounds for Ms. Hodz's withdrawal even though Husband offered stern factual and legal objections to it.
- G. Failing to require Mr. Davis's attendance at the January 9, 2025 hearing despite Husband's insistence on him attending and the core of Husband's argument being Mr. Davis's conduct. (Docket #72, 87).
- H. Allowing Mr. Hodz to make inflammatory and false remarks about Husband at the January 9, 2025 hearing and failing to require Mr. Hodz to provide support for his words or retract them (while still allowing Ms. Hodz to withdraw without making any factual findings). (Docket #109, p. 13, L19-p. 14, L17).
- I. Placing the burden to prove why Ms. Hodz should not be allowed to withdraw on Husband, and failing to review the evidence offered by Husband to prove that Ms. Hodz had not accomplished or even worked toward the single objective for which she was hired, and even agreed to produce. (Docket #109, p. 17, L5-20).
- J. Refusing to allow Husband to create a complete record regarding his due process rights and ending the hearing without addressing Ms. Hodz's duties to produce my entire file. (Docket #109, p. 17, L1-4).
- K. Ignoring Husband's desperate attempts to get file materials from his then former attorney. (Docket #83, 88).

- L. Having a relationship with Mr. Davis where he was comfortable not attending the hearing despite an alleged lack of confirmation from the Court on his excusal from attending the hearing (on which he was noticed and previously attended one on the same subject matter), his conduct being at the center of the issue for the hearing, and Husband's insistence that he attend. (Docket #110, p. 21-34).
- M. Judge Ayers treated Ms. Hodz's withdrawal request like an emergency when there were no findings or answers to what was emergent given the lack of ethical or safety issues, but refused to grant Husband an emergency hearing even with an allegation that Mr. Davis's inappropriate conduct placed the children at greater risk. (Docket #98).
- N. Again at a hearing on January 21, 2025, Husband brought up the concerns with Mr. Davis's behavior. The Court asked a question about it, but Mr. Davis quickly interrupted, refusing to allow Husband to answer, clearly trying to continue hiding from scrutiny. Judge Ayers refused to allow Husband to answer the question she asked after Mr. Davis interrupted to make his displeasure with the question about his antics well known. (transcript to be provided upon receipt along with the transcript on the December 13, 2024 hearing once received).

34. Judge Ayers conduct on the case places the party in drastically different and unfair positions in the litigation which further demonstrates the pattern of Judicial actions that undermine the impartial administration of justice in this case based on the levels and consistency in the Judge's bias and prejudice against Husband:

Wife:

- Did not disclose any financial assets at time of entering into PMA, and actually misrepresented her assets significantly around the time of it compared to the assets present on what's already been produced. (see Docket #22 and # 91, ¶9-11).

- Then filing 16 pages of interrogatories seeking 3 years of financial documents, and absurd information (like education records from over 20 years ago) as a preemptive attack on Husband who insisted on some limited financial discovery.
- Stipulates to produce MD's by 6-28-24, and makes no attempt to comply for almost 4 months after (just before a hearing which he tried to cancel based on his minimal last minute compliance).
- Many discovery violations that are so severe they infringe on Husband's right to due process.
- Yet, Wife, who received full disclosure from Husband at time of filing the PMA, receives 3 years of finances.
- Wife who would be entitled to a windfall of something likely in the six figures if PMA were set aside and she's telling the truth, still REFUSES to set aside the PMA if that means Husband will get discovery to investigate the issue.
- **Wife is taking the position that she wants less money and more litigation SO LONG AS the Court DOESN'T ALLOW HUSBAND to investigate her story. Wife says, I'll take less money, and spend more money on litigation rather than just get to the truth. Yet, Judge Ayers continues to inexplicably shield Wife from that critical discovery at the core of the case while ignoring completely inappropriate and unethical behavior from Mr. Davis, specifically, taking action for the specific purpose of delay, harassment and concealment of evidence. Despite this going in front of Judge Ayers multiple times, Docket #91, 97, and now 110).**

Now, on the other hand....

Husband:

- Made full financial disclosures with balances and passwords at the time of entering the PMA.

- Has requested far more limited and precise discovery imperative to any chance the couple has of a successful coparenting relationship.
- mandatory disclosures AND interrogatory responses timely on June 28, 2024.
- No discovery violations even producing information that's absurdly irrelevant to limit litigation costs and conflict for the children.
- Husband doesn't even have a proper Certificate of Compliance for Wife's Mandatory Disclosures due June 28, 2024, despite an order pending since 10-28-24.
- Husband is willing to give up the protections of the PMA in order to investigate additional marital assets Wife has concealed, yet the Court continues to allow Wife and her counsel to avoid any investigation into their conduct. Husband simply wants to find the truth so the family can establish a successful coparenting relationship.

35. Again, Judge Ayers' bias is evident in how the Court continues to shield Wife from the very discovery she demanded of Husband, while Wife has unclean hands in producing her discovery, still failed to even make a good faith attempt to comply with mandatory disclosures now over 7 months after they were due per stipulation, while also shielding Wife's counsel from any scrutiny over severely inappropriate behavior and litigation tactics.

36. For Judge Ayers to ignore the undisputed facts about Mr. Davis's unethical conduct and the phone calls that inexplicably changed both of Husband's attorneys' views of the case demonstrates such extreme bias that it's necessary to at a minimum, disqualify Judge Ayers from presiding over this case any further. (Docket #22, 72, 87, 90, 91, 92, 97, 98, 101, 105, 109, 110).

37. It's inconceivable that Judge Ayers continues to keep the parties in such unfair positions when Husband has made his due process concerns so prominent while always maintaining that his pursuit of this discovery is the motivating factor in all of the motions and other allegations Wife has since made since her preemptive attack with 16 pages of interrogatories seeking financial information going back 3 years. (Docket #22).

38. Husband has pleaded for the Court's assistance on multiple occasions and pointed out the relevant case law requiring the Court's investigation into reasonableness of the PMA, hence at least the additional discovery Husband has requested. (Docket #91, 97).

39. Nevertheless, the Court continues to ignore the law, and the family's interests in getting this issue behind them, precisely in line with what Mr. Davis wants, and what Husband's 2 attorneys refused to assist with after conferences with Mr. Davis.

40. Husband has even pleaded with the Court about these delays putting off decisions on 2 surgeries and other health related concerns, yet the Court continues to put off addressing this one core issue and worse, Mr. Davis's inappropriate conduct. (Docket #22, 72).

41. It's necessary that the Court transfer the case to a new Judge, or ideally, to a new venue such as Pasco County where Wife resides so that, the litigants have "their disputes resolved by impartial judges" "free from bias and prejudice" in assessing these issues critical to the litigants and children's future well being as required by Berry v. Berry 765 So.2d 855 (Fla. 5th DCA).

42. Furthermore, the Court even refused to grant Husband any relief or assistance in getting critical file materials from Ms. Hodz, and getting some answers about why all of the work contemplated at the time of hire was left undone at the time of her withdrawal. (See Docket #87, ¶36, Docket #88 specifically seeking that relief from the Court, and the Court's Order at Docket #93).

43. The January 9, 2025 Hearing that was apparently on Husband's motion for rehearing the motion/order on Ms. Hodz withdrawal did nothing to resolve any of the above concerns as Judge Ayers had no interest in protecting Husband's due process. (Docket #109).

44. The lack of concern in even getting Husband simple answers and completed work from his attorneys demonstrates a further disregard for Husband's due process rights. (Docket #88).

45. Once the Judge Ayers not only denied Husband's request for an emergency hearing, and still refused to hold Mr. Davis accountable for his actions at the January 21, 2025 hearing, it became evidence that Husband would not receive a fair process.

46. Given the evidence of bias in favor of Mr. Davis and Ms. Hodz at the expense of Husband's due process rights and other interests in this case, Husband fears he will not receive a fair trial or hearing because of the specifically described prejudiced and bias of Judge Ayers referenced herein.

WHEREFORE, the Respondent, CHRISTOPHER HANSON, respectfully requests the Court enter an Order:

- A. Disqualifying Judge Ayers from any further action on the case.
- B. Vacating any prior Court orders limiting Husband's rights to discovery,
- C. Assigning a new Judge to expedite the core issue in the case – Husband's right to discovery.
- D. Requiring Ms. Hodz to produce all file materials including those documents and text messages to Husband as referenced in prior pleadings before this Court.
- E. Scheduling and holding an evidentiary hearing where at a minimum, Husband, Mr. Davis and Ms. Hodz can offer testimony about the first and only call between counsels, and the call that took place between Husband and Ms. Hodz just afterwards.
- F. Granting Husband attorney's fees and costs and any other sanctions this Court may deem appropriate.
- G. Granting Respondent all other and further relief and damages as this and any future Court may deem just and necessary including but not limited to transferring venue as will be requested in a motion in draft form..

Verification of Husband pursuant to F.S. 92.525

Under Penalties of Perjury, I, Chris Hanson, declare that I have read the foregoing Verified Motion to disqualify, and that the facts are true.

1-29-25
Date

Chris Hanson
Signature

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished to all designated on e-service list on this 29th day of January, 2025.

/s/ Chris Hanson

Chris Hanson

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